

24STCV19188 24STCV19188

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-21

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Case Number: 24STCV19188 Hearing Date: August 21, 2026 Dept: 512

HEARING DATE: Fri., August 21, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Givens

v. City of Los Angeles, et al. COMP.

FILED: 07-30-24

CASE NUMBER: 24STCV19188

NOTICE: NO

PROCEEDINGS: MOTION

FOR PROTECTIVE ORDER

MOVING PARTY: Defendant

Cory Palka

RESP. PARTY: Plaintiff Dermot Givens

MOTION FOR PROTECTIVE ORDER

(Code Civ. Proc., § 2025.420)

TENTATIVE RULING:

Defendant Cory Palka's Motion for

Protective Order is DENIED.

The

Court imposes \$250.00 in sanctions against defense counsel for bringing the unsuccessful motion payable to Plaintiff within 30 days of this Court's order.

Moving party is ordered to
give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☐ Correct Address (CCP §§ 1013, 1013a) NO

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on July 20, 2026 ☐ Late ☐ None

REPLY: Filed
on August 11, 2026 ☐
Late ☐ None

ANALYSIS:

I.
Background

On July 30, 2024, Plaintiff Dermot
Givens ("Plaintiff"), proceeding pro se, filed the instant action against
Defendants City of Los Angeles; Los Angeles Police Department; LAPD Officer
Emmanuel Figueroa; LAPD Officer Gregory Papik; LAPD Officer L. Williams; LAPD
Officer L. Zaragoza; LAPD Commander (Retired) Cory Palka ("Defendants") and
Does 1-10, alleging claims for violations of the California Constitution and
the California Civil Code; False Imprisonment; Assault; Negligence; and
Intentional Infliction of Emotional Distress. (Compl.)

On January 20, 2026, the Court granted
Zaragoza, Williams, City of Los Angeles, Papik and Figueroa's Motion for
Summary Judgment. (1/20/26 Order.)

On February 10, 2026, Palka filed an Answer.

On July 16, 2026, Palka filed the instant Motion for Protective Order (the "Motion").

On July 20, 2026, Plaintiff filed an Opposition.

On August 11, 2026, Palka filed a Reply.

II. Procedural Issues

As an initial matter, the Court notes Palka filed and served the Motion by electronic service only. Self-represented litigants cannot be served electronically unless they consent to receive electronic service. (Cal. Rules of Court, rule 2.251; Code Civ. Proc., § 1010.6, subd. (c).) Here, Plaintiff is self-represented, and there is nothing in the record indicating Plaintiff manifested consent to receive electronic service.

However, given the timely Opposition, the Court exercises its discretion to address the Motion on the merits.

III. Legal Standard

"Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2025.420, subd. (a).)

The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or

other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: ... [t]hat the deposition be taken only on certain specified terms and conditions; [t]hat the scope of the examination be limited to certain matters.

(Code Civ.

Proc., § 2025.420, subds. (b)(5), (b) (10).)

IV.

Discussion

A. Meet and Confer

"Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2025.420, subd. (a).)

Here, the Court finds the Motion is not accompanied by a meet and confer declaration showing the parties met and conferred regarding the issues raised in the Motion.

Thus, the Court finds the parties failed to meet and confer prior to the instant Motion.

B. Palka Deposition

Palka moves for a protective order either prohibiting the deposition of Palka entirely or limiting the scope of the deposition to be to matters pled in the Complaint. (See Motion.)

In Opposition, Plaintiff contends California permits liberal discovery, and Plaintiff is seeking relevant information from Palka regarding the issues raised in the Complaint – namely, Plaintiff is seeking information to discover the "members of the rogue gang that operated at the LAPD Hollywood Div. that participated in targeting Plaintiff in the incidents" raised in the Complaint. (Opp., pp. 2-6, 8-9.) Plaintiff contends that there is pertinent information to the Complaint's causes of

action that occurred prior to the 2024 incident. (See Opp., pp. 2-6.) Moreover, Plaintiff contends there are reasonable alternatives to a protective order, such as Palka responding to discovery by “stating that he ‘does not know,’ ‘does not remember,’ ‘deny he as any such facts that will allow for his response,’ or provide the facts requested.” (Opp., p. 7.) Further, Plaintiff states Palka may object to Plaintiff’s questions at the deposition and/or invoke 5th Amendment rights. (Opp., p. 7.)

In Reply, Palka contends Plaintiff’s Opposition further emphasizes that the anticipated questions for Palka’s deposition are irrelevant to the 2024 incident that forms the basis of the Complaint. (Reply, p. 1.)

As an initial matter, the Court finds there is no deposition notice accompanying any of the briefing in this matter.

Further, the parties do not dispute that Palka is a named party to this action. The Court finds that Palka has not shown good cause as to why, as a named party in this action, Palka should be completely exempt from being deposed by Plaintiff. Thus, the Court finds Palka’s request to be entirely excused from being deposed by Plaintiff legally unsupported and unpersuasive.

As to Palka’s request that the Court issue a protective order limiting the scope of Palka’s deposition to just matter relevant to the Complaint in this matter, the Court does not find Palka has shown good cause for a protective order preemptively limiting the scope of Palka’s deposition. No deposition of Palka has been held, and the law requires Palka to answer relevant deposition questions to the best of Palka’s personal knowledge – there is no need for the Court to impose a protective order to that effect. Palka presents no legal authority mandating the Court find otherwise.

Furthermore, the Court is not satisfied that the typical tools afforded deponents and their counsel in depositions – such as objections, including objections as to relevancy – are insufficient to ensure Palka only provides responses to questions relevant to this action.

Given these circumstances, the

Court finds that Palka has failed to show good cause for a sweeping protective order prohibiting the deposition of Palka entirely or limiting the scope of questions allowed at the deposition at this time. The Court trusts the parties are able to discuss and work out parameters for the deposition between themselves.

Accordingly,
the Motion is DENIED.

C.
Sanctions

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.420.)

The
Court imposes \$250.00 in sanctions against defense counsel for bringing the instant unsuccessful motion.

D.
Conclusion
& Order

Based on the foregoing, Defendant Cory
Palka's Motion for Protective Order is DENIED.

The
Court imposes \$250.00 in sanctions against defense counsel for bringing the unsuccessful motion payable to Plaintiff within 30 days of this Court's order.

Moving party is ordered to
give notice.